

MODULAR ADDENDUM

NON-INTERDICTION AND MARITIME TRANSIT INTEGRITY PROTOCOL

*Separating Lawful Safety Regulation from Illegal Tolls and
Extortion*

Date: May 29, 2026

**CLASSIFICATION: AUTHORIZED
NEGOTIATORS ONLY – DRAFT FOR
CONSIDERATION**

PREAMBLE

Purpose. To establish a clear, binding legal seam between lawful maritime safety regulation and prohibited tolls, fees, levies, or extortionate conditions on transit passage through the Strait of Hormuz, preserving the navigational rights of all commercial vessels under international law while respecting the legitimate safety and environmental responsibilities of coastal States.

Core Principle. The Parties affirm that transit passage through the Strait of Hormuz shall remain free, unimpeded, and unencumbered by any financial demand, administrative tariff, or fiscal condition. Lawful coastal State regulation is limited exclusively to non-discriminatory safety, environmental protection, and traffic control measures applied uniformly to all vessels in accordance with international law.

Modularity Clause. This Addendum is self-contained and may be incorporated into any existing or future agreement between the Parties by a single sentence of adoption. It does not amend or supersede conflicting provisions of any parent framework unless the Parties explicitly so agree. In the event of inconsistency, this Addendum governs with respect to the specific subject matter of interdiction, transit tolls, and the separation of lawful regulation from prohibited fiscal measures.

ARTICLE 1: MARITIME REGULATION CLAUSE

For the purposes of this Addendum, the Parties affirm that:

- a. **Lawful maritime regulations** shall be limited to non-discriminatory safety, environmental, and traffic control measures applied in accordance with international law and uniformly to all vessels, without regard to flag, origin, cargo, or destination; and
- b. **Prohibited measures** shall include any requirement for payment, fee, toll, or charge as a condition for exercising transit passage, other than port-related dues voluntarily incurred by vessels calling at ports.

Clarification: Nothing in this Article shall be construed as impairing obligations under the International Convention for the Safety of Life at Sea (SOLAS), 1974, as amended. Actions taken solely to address genuine maritime emergencies — such as a vessel in distress, actively on fire, sinking, or posing an imminent threat to life at sea — remain permitted, provided such actions are not used as a mechanism to enforce compliance with any economic, administrative, or fee-related requirement. The burden of demonstrating that an intervention was motivated solely by bona fide safety concerns rests with the interdicting Party or entity.

ARTICLE 2: TRANSIT SAFETY CONTRIBUTION CLAUSE

The Parties support the establishment of a **Multilateral Transit Safety Facility** administered by a neutral international financial institution designated by the Depositary.

Contributions to this Facility shall be:

- a. **Voluntary and non-mandatory** for the exercise of transit passage;
- b. **Allocated to regional safety, environmental protection, and navigational aid projects**, as identified by a technical committee including, but not limited to, coastal States; and
- c. **Disbursed in a manner that does not confer legal recognition on any specific domestic enforcement body** and remains fully consistent with applicable national sanctions laws.

No contribution to the Facility shall be required as a condition of transit, nor shall any vessel's transit clearance, AIS status, or operational permissions be affected by contribution or non-contribution.

ARTICLE 3: JOINT HORMUZ COORDINATION MECHANISM (JHCM)

The Parties shall participate in a Joint Hormuz Coordination Mechanism, seated in Muscat, serving exclusively as a forum for:

- a. Exchange of navigational safety information;
- b. Deconfliction of military and law enforcement activities; and
- c. Non-binding recommendations to prevent incidents at sea.

Nothing in this Addendum shall be interpreted as conferring upon the JHCM any authority to authorize, deny, or control transit passage, nor as recognizing any domestic body as having such authority.

ARTICLE 4: CIVILIAN INCIDENT PROTOCOL

In the event that any civilian or port-authority vessel of a coastal State engages in an inspection, boarding, or delay of a transiting vessel on grounds related to safety, environment, or documentation, the following shall apply:

- a. The incident shall be notified to the Joint Hormuz Coordination Mechanism within 12 hours;
- b. No Party shall treat such an incident as a material breach or grounds for the use of force unless and until consultations have occurred within the JHCM and a pattern of repeated, unjustified interference has been established; and
- c. The Parties shall seek to resolve such incidents through clarification of applicable regulations and, where necessary, technical adjustments to this Addendum.

This Protocol does not apply to incidents involving military vessels, which remain governed by applicable rules of engagement and the bilateral escalation deconfliction mechanisms of the parent framework.

ARTICLE 5: UNITED STATES NON-INTERVENTION COMMITMENT

The United States affirms that its naval forces shall not use kinetic or coercive measures to enforce compliance with any transit fee, navigational service charge, or similar levy.

U.S. naval forces may intervene in the Hormuz Transit Zone only for:

1. Verified threats to navigation safety (e.g., vessel in distress, collision avoidance);
2. Acts of piracy as defined under international law (UNCLOS Article 101);
3. Responses to a specific, imminent, and verified armed attack.

U.S. naval forces shall not:

- Intervene in disputes between vessel operators and littoral states over administrative or financial matters;
- Use the threat of intervention to compel payment of fees;
- Act as debt collectors for any regional authority;
- Recognize, legitimize, or cooperate with any body asserting toll-collection authority over the Strait of Hormuz.

ARTICLE 6: DISPUTE RESOLUTION

Any dispute arising from the interpretation or enforcement of this Addendum shall be resolved through binding arbitration under the Permanent Court of Arbitration (PCA) in The Hague.

- **Arbitration panel:** Three members (one appointed by each Party, one neutral appointed by the PCA Secretary-General).
- **Timeline:** Ruling shall be issued within 30 days of the filing of the dispute.
- **Standstill:** No unilateral coercive action, including military or economic measures, shall be taken by either Party pending the arbitration ruling.

ARTICLE 7: INCORPORATION BY REFERENCE

This Addendum may be incorporated into any existing or future agreement between the Parties by the following sentence:

"The Parties adopt the Modular Addendum on Non-Interdiction and Maritime Transit Integrity as an operative provision of this Agreement. In the event of any inconsistency, the Addendum shall govern with respect to the interdiction of commercial vessels, the prohibition on transit tolls, and the separation of lawful safety regulation from prohibited fiscal measures."

No further amendment of the parent framework is required. This Addendum enters into force upon the later of:

1. Signature by both Parties; or
2. The effective date of the parent framework into which it is incorporated.

ARTICLE 8: PROVISIONAL APPLICATION

The Parties may agree to apply this Addendum provisionally for a period of 90 days, pending formal ratification or incorporation into a parent framework.

- Provisional application shall be effected by an exchange of diplomatic notes.
- During provisional application, all provisions of this Addendum shall be operative and binding.
- Either Party may terminate provisional application with 14 days' written notice.

ARTICLE 9: SEVERABILITY

If any provision of this Addendum is found by a court of competent jurisdiction or arbitral panel to be unenforceable, the remaining provisions shall remain in full force and effect.

The Parties shall promptly negotiate a replacement for any provision found unenforceable, preserving the original intent to the maximum extent possible.

ARTICLE 10: DURATION AND WITHDRAWAL

This Addendum shall remain in force indefinitely, unless:

1. Both Parties agree in writing to terminate it; or
2. The parent framework into which it is incorporated terminates, and the Parties do not reaffirm this Addendum within 90 days of such termination.

Important: Withdrawal from this Addendum without withdrawal from the parent framework is not permitted. This Addendum is integral to the transit integrity architecture and may not be severed unilaterally.

SIGNATURE PAGE

For the Islamic Republic of Iran:

Name:

Title:

Date:

For the United States of America:

Name:

Title:

Date:

Witnessed by (if applicable):

Sultanate of Oman

Swiss Confederation

Other (specify)

This Addendum enters into force upon signature by both Parties or upon incorporation by reference into a parent framework, whichever occurs later.